ISO Agent Sales Agreement

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This Sales Agent Agreement (the “Agreement”) is made and effective as of this date, ______________________________ .

by and between Premium Merchant Funding 18, LLC (“PMF”) and ________________________________(Agent)

with principal offices located at ____ .

WHEREAS, PMF purchases and outsources the purchase from businesses (“Merchants”) a percentage of future credit card, debit card, bank card, and/or other banking deposits, checks, electronic deposits, and receipts (“Receipts”) of the Merchant for an amount agreed to by PMF or PMF affiliates and each Merchant (the “Program”);

WHEREAS, Agent wishes to promote the Program, assist with its implementation and refer potential Merchants to PMF that may wish to participate in the Program, all subject to the terms hereof.

NOW, THEREFORE this Agreement witnesses that in consideration of the mutual covenants by each of the parties hereto, the parties agree as follows:

1. **Agent Obligations.** Agent will market and promote (on a non-exclusive) Program and assist interested parties in completing and submitting to PMF an application, in a form acceptable to PMF. Each Merchant assisted by Agent shall; (i) comply in full with the requirements set forth in the rules and policies of PMF as they may exist from time to time. PMF will evaluate and, at its sole discretion, accept or deny such applications. Agent shall not be the only or exclusive sales agent of the Program for PMF. PMF may, at its sole discretion, retain the services of other sales agents.

2. **Compliance with Telemarketing Laws.** Agent agrees to market and promote the Program in full compliance with all applicable laws, regulations, and rules, including, but not limited to, the Telephone Consumer Protection Act (TCPA), the CAN-SPAM Act, the rules and regulations of the Federal Communications Commission, the Telemarketing Sales Rule, and any relevant state telemarketing laws (collectively, "Telemarketing Laws"). Agent acknowledges that PMF maintains a strict policy of non-tolerance for any violations of laws, regulations, or Telemarketing Laws in the course of fulfilling Agent’s obligations under this Agreement. PMF shall not be held liable for any violation of Telemarketing Laws by Agent, and Agent agrees to indemnify, defend, and hold PMF harmless from any and all resulting liabilities.

3. **Agent Compensation.** In consideration for the services rendered by the Agent hereunder, PMF agrees to pay Agent in accordance with the Agent Compensation Schedule, set out in Schedule A (the “Compensation”). Compensation shall be paid in respect of each Merchant referred to PMF by Agent only, and which Merchant has entered into a Merchant Agreement in a form prescribed by PMF (“Merchant Agreement”) as a direct result of the referral by Agent. If a Merchant defaults

under the terms of the Merchant Agreement within thirty (30) days of entering the Program, PMF reserves the right to claw back all Compensation paid for that Merchant referral which was paid to Agent. PMF will provide notice of any clawbacks of Compensation and Agent agrees to repay any Compensation in the event of a clawback. Payment of all Compensation to Agent shall continue and survive termination of this Agreement, except in case of a breach of this Agreement by Agent.

4. **Merchant Application and Agreement.** Only PMF shall be authorized to accept, ratify or finalize any Merchant Agreement and include a Merchant in the Program. PMF may, at its sole and absolute discretion, decline to accept any Merchant in the Program for any reason whatsoever. Under no circumstances shall Agent hold out that it has any right to accept or decline a Merchant application for a Merchant Agreement, nor shall it hold out or represent to any third party that it has the right to (a) modify in any way or accept any Merchant Agreement; (b) include a Merchant in the Program; or (c) bind PMF legally or otherwise. No agreement made by or through Agent or its affiliates shall be legally or otherwise binding on PMF until accepted in writing by a duly authorized officer of PMF. Agent shall be solely responsible for any and all expenses incurred by Agent in the performance of services hereunder including, but not limited to, expenses related to any Agent employees or consultants. Agent acknowledges and agrees that PMF may, at its sole discretion, amend the terms of the Program, including, without limitation the pricing thereof without prior notice or consent from Agent.

5. **Agent Identification.** In the course of carrying out its obligations hereunder, Agent shall clearly identify itself with its own corporate name, but also disclose to all third parties that it is an agent of PMF for the promotion of the Program. Agent agrees that its actions and the actions of its shareholders, Affiliates (as defined below), directors, officers, employees, independent contractors, representatives, agents, principals, and associates under or in connection with this Agreement (collectively, "Agent Parties") shall be governed, controlled and directed by, and shall be in full compliance with, the terms hereof and shall at all times and in respect of all parties and third parties be construed as actions taken by Agent subject to the terms hereof. Agent shall be responsible to ensure that all Agent Parties are adequately trained to perform hereunder and conform to all of the provisions hereof. Agent covenants that Agent Parties shall abide by the obligations of the Agent set out in Schedule A hereto.

6. **Representations and Warranties.** Each party hereto represents and warrants to and for the benefit of the other party that as of the date hereof and during the term hereof:

   A. It is a corporation or limited liability company organized, validly existing, and in good standing under the laws of the State where its principal office is located;

   B. It has full authority and corporate power to enter into this Agreement and to perform its obligations under this Agreement.

C. Its performance of this Agreement will not violate any applicable law or regulation or any agreement to which it may now be bound;

D. This Agreement represents its valid obligation and is fully enforceable against it;

E. It is not a party to any pending litigation that would have an impact on this Agreement and has never been fined or penalized by Visa, MasterCard, NACHA or any other association in the credit, payments, or banking industry; and

F. It is not on the Member Alert to Control High-Risk merchants list of MasterCard or any other similar list.

An agent shall covenant that during the term hereof and so long as it is bound by the non-interference provision below, it shall:

A. Comply with any and all policies and guidelines established by PMF;

B. Where appropriate, inform potential Merchants that they are required to change credit card processors in order to participate in the Program;

C. Accurately describe the Program;

D. Immediately inform PMF of any changes that become known to Agent in the address, ownership or business or operations of itself or of any Merchant;

E. Deliver to PMF all documents required as part of a Merchant Application together with each application, including without limitation: Merchant Agreement, Application Form, voided Merchant check, Merchant statements, and any other documents required according to PMF guidelines, such as they may be from time to time;

F. Remain cognizant and in agreement that this Agreement may be terminated immediately by PMF upon breach of any obligation, covenant, representation or warranty set forth in this Agreement or if determined by PMF, in its sole discretion, that Agent is causing negative effect on the Program, PMF or its affiliates;

G. Not cause or solicit a successfully referred Merchant to terminate or alter its credit card processing to another bank or processor, which has no contractual affiliation with PMF or any of its affiliates while such Merchant has a balance owed to PMF.

7. **Term and Termination.** The term of this Agreement shall begin on the date appearing on the first page above and will continue for an initial term of one (1) year. After the initial term, this Agreement shall automatically renew for successive one (1) year terms unless terminated by either party upon ninety (90) days' written notice prior to the end of the then-current term. This Agreement may be terminated immediately by PMF upon breach by Agent of any of its obligations herein or if, as determined by PMF, Agent or any Agent Parties causes a detrimental

effect to the Program, PMF, or any of its affiliates, other programs, officers employees or Merchants.the obligations of the Agent set out in Schedule A hereto.

8. **Non-Interference.** During the term of this Agreement, Agent and Agent Parties shall not permit themselves or permit any respective subsidiary, affiliate, or successor in the interest of their respective officers, employees, agents, or nominees; (i) to interfere, in any manner whatsoever, either directly or indirectly by any arrangement whatsoever, with PMF contractual relationship with any of its merchants successfully referred to PMF by agent or clients; (ii) to cause or attempt to cause any Merchant or other PMF client to terminate its relationship with PMF or utilize the services of any entity other than PMF. For the purposes of this Agreement the term " Affiliate" or "affiliate" shall mean, with respect to a specified party, any party that directly, or indirectly through one or more intermediaries, controls or is controlled by, or is under common control with, the specified party.

9. **Non-solicitation.** The parties agree that throughout the term of this Agreement and for none of Agent Parties, nor any of their respective affiliates shall hire any of the current officers or employees or agents of the other party hereto or any of its Affiliates who have established contact as a result of this agreement. So long as such restricted employee or agent remains employed or retained by such party or its Affiliates, without the prior written consent of such party.

10. **Remedies.** Without limiting the foregoing, in the event of a breach of Section 1,3,4,5,6 or 7 of this Agreement by Agent or any Agent Party, PMF shall be entitled to apply to a court of competent jurisdiction for an injunction to restrain such breach, without the need for bond, and PMF shall have no obligation to make any further Compensation or other payment to Agent that might otherwise come due after such breach; provided that Agent does not cure breach within 10 calendar days after notice thereof. Any remedies hereunder shall be in addition to any other remedies available to PMF in law or in equity.

11. **Assignment; Successors; Amendments.** This Agreement shall inure to the successors and permitted assigns of the parties hereto. With the exception of amendments to the Program and Compensation, which may be made at the discretion of PMF, this Agreement may be amended only by a written agreement executed by both parties hereto.

12. **Confidential Information.** Each party acknowledges that it may directly or indirectly disclose

Confidential Information to the other party in the course of the negotiation of and performance of this Agreement. All such Confidential Information disclosed here under shall remain the sole property of the disclosing party (or other third parties), and the receiving party shall have no interest in, or rights with respect thereto, except as set forth herein. Each party agrees to treat such Confidential Information with the same degree of care and security as it treats its most confidential information. Each party may disclose such Confidential Information to employees and agents who require such knowledge to perform services under this Agreement. Except as otherwise contemplated by this Agreement, neither party shall disclose the Confidential Information of the other party to any third party without the prior written consent of the disclosing party, and the duty of confidentiality created by this section shall survive any termination of the Agreement.

“Confidential Information” means all proprietary, secret, or confidential information or data relating to either party and its affiliates, operations employees, products or services, clients, customers or potential customers. Confidential Information shall include customer lists, card member account numbers, pricing information, computer access codes, instruction and/or procedural manuals, and the terms and conditions of this Agreement. Information shall not be considered Confidential Information only to the extent that such information is: (i) already known to the receiving party free of any restriction a the time it is obtained; (ii) subsequently learned from a third party free of any restriction and without breach of this Agreement; (iii) or becomes publicly available through no wrongful act of the receiving party; (iv) independently developed by the receiving without reference to any Confidential Information of the other; or (v) required to be disclosed by law.

13. **Notice.** Unless otherwise specified herein, any notices or other communications required or permitted hereunder shall be sufficiently given if in writing and delivered personally or sent by recognized courier, registered or certified mail (postage prepaid with return receipt requested) to the address of PMF or Agent set forth below or by electronic messaging (e-mail) to the designate email address below. Such notices or other communications shall be deemed received (i) on the date delivered, if delivered personally, (ii) on the business day after being sent by an internationally recognized overnight air courier or (iii) five days after being sent, if sent by first class registered mail, return receipt requested.

Notice to Agent:

NAME

ADDRESS

CITY/STATE/ZIP

PHONE/FAX/EMAIL

Notice to PMF

Premium Merchant Funding 18, LLC

NAME

55 Water Street, 50th Floor

ADDRESS

New York, NY 10004

CITY/STATE/ZIP

info@pmfus.com

PHONE/FAX/EMAIL

14. **Governing Law.** This Agreement shall be governed by and construed in accordance with the laws of the State of New York (without regard to its principles of conflicts of laws) whose courts shall have sole jurisdiction over disputes arising hereunder. The parties agree that issues arising hereunder are too complex to be addressed by a jury and covenant to elect for a non-jury trial in the event of a trial relating hereto. Should suit be brought to enforce or interpret any part of this Agreement, the prevailing party shall be entitled to recover its reasonable attorneys' fees and costs, including expert witness fees and fees on appeal.

15. **Whole Agreement.** This Agreement, including all schedules, exhibits and attachments thereto, sets forth the entire agreement and understanding of the parties hereto in respect of the subject matter contained herein and supersedes all prior agreements, promises, covenants, arrangements, communications, representations, or warranties, whether oral or written by any officer, partner, employee or representative of any party hereto. No amendment or modification to this Agreement, nor any waiver of any rights hereunder, shall be effective unless assented to in writing by both parties. Nothing in this Agreement, express or implied, is intended to confer or shall be deemed to confer any rights or remedies upon any persons not parties to this Agreement.

16. **Relationship of Parties.** PMF and Agent are independent contractors hereunder and their relationship shall not be construed as any other form of employee/employer relationship, joint venture or partnership. PMF intends no contract of employment, express or implied, with either Agent or Agent Parties; neither Agent nor any Agent Party has obtained any right to employment or compensation as an employee or any other benefits of an employee by way of this Agreement. Agent agrees that it shall be solely responsible for the purchase and maintenance of employment or workers' compensation insurance coverage related to its employees and that PMF shall have no responsibility for any such liabilities.

17. **Limitation of Liability.** PMF shall not be liable hereunder to Agent or any third party for any liquidated, indirect, consequential, exemplary, or incidental damages (including damages for loss of business profits, business interruption, loss of business information, and the like) arising out of this Agreement even if the party at fault has been advised of the possibility of such damages.

18. **Severability.** If any provision hereof is for any reason determined to be invalid, such provision shall be deemed modified so as to be enforceable to the maximum extent permitted by law consistent with the intent of the parties as herein expressed, and such invalidity shall not affect the remaining provisions of this Agreement, which shall continue in full force and effect.

State Disclosure Requirements

Due to changes in state law that now impose licensing, registration, and/or disclosure requirements on companies that provide commercial or business-purpose financing, PMF and its subsidiaries and affiliates (collectively, "we", "us" or "PMF") are obliged to develop a program (the "ISO Program") for dealing with independent service organizations, broker, marketers, or other third-party service providers (collectively, "Brokers") who participate in our transactions (defined in our contract as "Programs" and expressly subject to our agreement with you) with potential customers ("Merchants").

We will monitor ISOs for compliance with ISO Program requirements. Please note that failure to comply with the requirements of the ISO Program may result in a suspension or discontinuation of our relationship with an ISO and/or termination of any agreement with an ISO, in accordance with the terms of that agreement. Further, failure to strictly adhere to this ISO Program may be considered by PMF to be an action that has the effect of injuring or otherwise harming PMF, as set forth in our agreement with you, and thus may constitute a breach of our agreement with you.

We may update the ISO Program from time to time by notifying you in writing of any changes to the ISO Program.

Requirements for Virginia Merchants

Definitions:

1. A "Virginia Merchant" means a business whose principal place of business is in Virginia. If a business provides a Virginia address in an application, the ISO must assume that the business is a "Virginia Merchant."
2. "Virginia Disclosure" means the disclosure required by Virginia's Sales-Based Financing Disclosure Law.

Requirements:

1. An ISO must not refer any Virginia Merchant to PMF for any sales-based financing transaction unless the ISO is registered with the Virginia Bureau of Financial Institutions as a "sales-based financing broker."
2. If PMF provides an ISO with a contract for a Virginia Merchant, PMF also will provide the ISO with a Virginia Disclosure. The ISO must not change or alter a contract or a Virginia Disclosure in any way.
3. If a Virginia Merchant accepts a contract, the ISO must ensure that the Virginia Merchant signs and dates both the contract and the Virginia Disclosure.
4. The ISO must promptly provide PMF with a copy of any contract and Virginia Disclosure signed by a Virginia Merchant.

Requirements for California Merchants

Definitions:

1. A "California Merchant" means a business that is principally directed or managed from California. If a business provides a California address in an application, the ISO must assume that the business is a "California Merchant."
2. A "Specific Offer" means a written communication (including e-mail and text message) that includes both:
    a. Any payment amount, irregular payment amount, or financing amount, and
    b. Any rate, price, or cost of financing, including the total repayment amount.
3. "California Disclosure" means the disclosure required by California's Commercial Financing Disclosure Law.

Requirements:

1. An ISO must not transmit any Specific Offer to a California Merchant related to PMF without PMF's prior written consent.
2. If PMF instructs an ISO to communicate two or more financing options to a California Merchant:
    a. The ISO must communicate all of the financing options to the California Merchant at the same time; and
    b. The ISO must communicate to PMF which, if any, of the financing options the California Merchant selects.
3. If PMF provides an ISO with a Specific Offer for a California Merchant, PMF also will provide the ISO with a California Disclosure. The ISO must not change or alter the Specific Offer or California Disclosure in any way.
4. The ISO must transmit the California Disclosure to the California Merchant at the same time the ISO transmits the Specific Offer.
5. Within 24 hours after the ISO has transmitted a California Disclosure to a California Merchant, the ISO must provide PMF with acceptable evidence of the date and time of the transmission. Acceptable evidence includes:
    a. A copy of an e-mail sent to a California Merchant in which a California Disclosure is an attachment; or
    b. A copy of a signed and dated California Disclosure.
6. An ISO must promptly provide PMF with a copy of any California Disclosure signed by a California Merchant.
7. If the ISO uses an electronic record or method to provide a California Disclosure, then the ISO must ensure that the process for obtaining the electronic signature includes an automatic date stamp recording the date on which the California Merchant's electronic signature was obtained.
8. An ISO who provides a California Disclosure must provide the California Merchant with a copy of the California Disclosure in a form that the California Merchant may retain.

Requirements for Utah Merchants

Definitions:

1. A “Utah Merchant” means a business located in Utah. If a business provides a Utah address in an application, ISO must assume that the business is a “Utah Merchant.”
2. “Utah Disclosure” means the disclosure required by Utah’s Commercial Financing Registration and Disclosure Act.

Requirements:

1. If PMF provides an ISO with a contract for a Utah Merchant, PMF also will provide the ISO with a Utah Disclosure. The ISO must not change or alter a contract or a Utah Disclosure in any way.
2. If a Utah Merchant accepts a contract, the ISO must ensure that the Utah Merchant signs and dates both the contract and the Utah Disclosure.
3. The ISO must promptly provide PMF with a copy of any contract and Utah Disclosure signed by a Utah Merchant.

Broker hereby expressly represents and warrants the following regarding its dealings with any merchant located in one of the states identified above, as such may be amended from time to time (each a “Subject State”), that is referred for funding from PMF (the “Applicant”):

1. That Broker understands and acknowledges that it is a “Broker”, as that term is defined under applicable state laws and regulations;
2. That Broker understands, acknowledges, and will at all times act in compliance with the obligations imposed upon it by such laws and regulations;
3. That Broker will timely provide to the Applicant the disclosures required by such laws and regulations and provided to Broker by PMF at the time that Broker provides to the Applicant, in writing, any specific offer, including price or amount;
4. That Broker will not, as of December 9, 2022 and thereafter, provide to the Applicant, in writing, any specific offer, including price or amount, without the prior consent or at the direction of PMF. Offers presented to any merchant in California will be multiple PMF offers by clicking on the “California Offers” link and downloading both approvals for presentation;
5. That Broker will not, as of December 9, 2022, and thereafter, extract and offer to an Applicant a specific offer from the multiple offers provided by PMF, including those provided through email and/or the Partner Portal; and
6. When you as the Broker request contracts with a specific offer, you will confirm the merchant’s email. Through Docusign, PMF will provide the merchant with DocuSign instructions and links to access the contract PDF and all necessary disclosure documentation. For compliance purposes, PMF will maintain all transmission documentation of the disclosure with the Applicant as required pursuant to applicable state laws and regulations (including timing of transmission).
7. Applicable law requires that PMF discontinue its business relationship with any broker who has engaged in a pattern of non-compliance with the requirements set forth above.

IN WITNESS WHEREOF, the parties have caused this Agreement to be executed as of the date first written above.

Premium Merchant Funding	Agent (ISO)
PRINT NAME	PRINT NAME
TITLE	TITLE

Schedule A
Agent Compensation

This Agent Compensation Schedule sets out the terms of payment of Compensation under the Agreement. In the event of any discrepancy between the terms of this Schedule and the Agreement, the Agreement shall prevail. Changes to the Program may be made at PMF's sole discretion, with advance notice in writing.

Agent shall be paid its Compensation within seven (7) business days after the purchase price for the purchased amount is paid by PMF or PMF's affiliates to the Merchant.

In the event Merchant is placed in default (as detailed in the Merchant Agreement), PMF reserves the right to claw back from Agent any commission payments made and will retain ongoing authorization to claw back commissions via ACH directly from the Agent's bank account WITHOUT PRIOR NOTICE.

____

INITIAL

All Compensation is based on the funded amount of the cash advance.

PMF Funding Program	PMF Funding Program – up sell a maximum of 12 points on the buy rate, minimum buy rates of 1.30 (see PMF underwriting guidelines and criteria).
ISO – Broker Program	In the event that PMF brokers a merchant cash advance with another funder and the Agent sends in a complete application package and completes the process of bringing the deal to successful funding, 50% of the actual commission paid to PMF will be paid to Agent.
ISO – Referral Program	In the event that Agent refers a merchant to PMF and brokers a merchant cash advance with another funder and PMF completes the process of bringing the deal from referral to funding (closes the deal), 50% of the actual commission paid to PMF will be paid to Agent.
ISO Additional Funding on Same Client	In the event PMF funds a previous funded client the commission breakdown will follow: 2nd Deal: 30% - 3rd Deal: 20% - 4th Deal: 15%

Schedule B

Agent Information

FULL NAME

DATE OF BIRTH

SSN

HOME ADDRESS

PHONE 1

PHONE 2

EMAIL ADDRESS 1

EMAIL ADDRESS 2

PLEASE ATTACH A COPY OF YOUR DRIVER'S LICENSE AND A SIGNED W9